AI Capex/ Data Centers

Early Thoughts On Blue Wave Implications On DC & Power Funding

Blue Wave has profound implications on the Data Center and Power sectors. Along with Democratic control of both the House of Representatives and the Senate, Democrats won governor races in key data center states including Texas, Georgia, New Mexico, and Nevada. Additionally, as of this writing, 42/45 local ballot measures to restrict data centers (the anti-data center outcome) have either passed or are leaning towards passing (Harwood, North Dakota is the lone outlier).

Governor platforms are worth focusing on. Rational decision makers can and often do change their minds as the facts change. However, pivots off of election platforms typically are not instantaneous, and it would likely be Pollyannaish to assume that governors-elect don't follow through on their stated platforms. To review:

- Texas Governor Elect: Hinojosa's platform explicitly called for an immediate moratorium during the campaign as well as handing more power to local communities to decide on data center development.
- Georgia Governor Elect: While not part of her explicit platform, Bottoms also called for a statewide pause on new data center developments for "one to six months or longer" to evaluate the long-term impact on the state.
- New Mexico Governor Elect: Haaland's explicit platform calls for a pause on new large-scale projects until clear guardrails are established.
- Nevada Governor Elect: Ford has proposed pausing tax breaks for data-centers, protecting data center staff through wage/benefit standards, and making data centers pay for any increase in utility prices for residential customers.
- Ohio Governor Elect: Acton has proposed a conditional moratorium on data centers to ensure they cover one hundred percent of utility costs, are built with union labor and operate transparently.

Local ballot measures are concentrated to the Midwest but are a powerful commentary on grass roots developments. As of this writing, 42/45 local ballot measures to restrict data centers (such as a MW cap, voter-approval requirement, or outright ban) have passed or are leaning to passing. Only one measure failed (North Dakota) and two have not posted results. Among the local restrictions, the biggest concentration by state is Ohio (20) followed by Illinois and Maine. Given how successful these local ballot measures have been this cycle, as well as overall engagement on the issue, we would anticipate a proliferation of similar local ballot measures in 2028. As one astute observer stated this morning, "The 2028 election has already begun".

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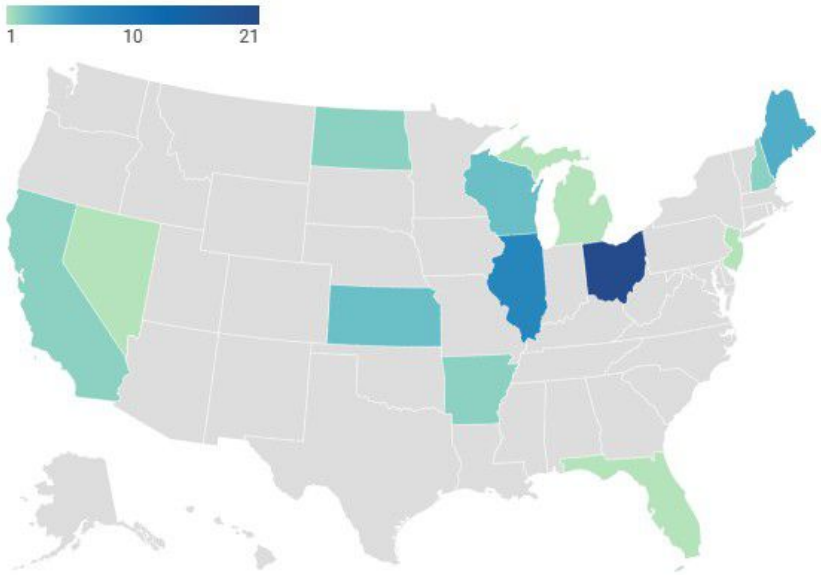
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Figure 1: Data center-related local ballot measures, 2026



Source: Ballotpedia

Power & Utilities

Softer power demand is expected to impact Independent Power Producers (IPPs). Following the Democratic wins in the November 3rd Midterms, **we expect weakness across most IPPs, particularly those with significant exposure in Texas, Ohio, Pennsylvania, and Georgia (ALPGEN, CEG, LONRID, NRG, TLN, VST)**. Most of these states have not placed an outright ban on data center development, but any new projects are expected to have higher hurdles for approval, giving approved projects a significant advantage. While we expect any slowdown in data center development to place downward pressure on power prices, meaningful newbuild power generation is not expected until the 2029 timeframe. In addition, **IPPs such as VST, TLN, and CEG could see increased contracted revenue as their existing PPAs come online in the next few years, which could help insulate balance sheets from power price volatility** longer-term.

Behind-the-Meter (BTM) Power Providers to see the largest near-term impacts. We expect the more bespoke BTM/bridge power providers (SEI, VOLTAG) to see the most negative near-term impact, as extended data center construction timelines could soften demand for bridge power solutions before new supply hits the grid in 2029, particularly in Texas and PJM.

Regulated utilities could see some reset of growth expectations, but data centers have been more of a "nice to have" for credit. Recent management commentary across many regulated utilities has been focused on data center demand, driving EPS growth in the 6-9% range. However, a pull-back in data center related capex could be a relief for balance sheets within the regulated space, particularly as capital investment is expected to grow through at least 2030. For this reason, we see a potential pullback in data center development as relatively benign for regulated utility credit.

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Texas (ERCOT): Gina Hinojosa's rise to Texas Governor will likely have the largest impact on power demand, as one of her campaign priorities includes an immediate moratorium on new data centers as well as handing more power to local communities to decide on data center development. Notably, the Governor-Elect highlights rate freezes and more scrutiny around data center infrastructure to keep costs manageable for ratepayers. VST, CEG and NRG have the most exposure in the state, but we note that all three IPPs have balanced exposure in other parts of the country as well, including PJM. On the regulated side, AEP Texas could see tailwinds as the company recently doubled its approved data center development in the state to 1.6GW.

Ohio, Pennsylvania (PJM): Dr. Amy Acton's gubernatorial win in Ohio will likely result in conditional moratoriums on data centers, with stronger guardrails in place around related infrastructure development. Ohio represents nearly half of the 40+ measures around the country to restrict or block data center development, so we could see continued momentum in the state to slow data center related infrastructure. PJM already has a significant number of data center moratoriums relative to the rest of the country, many of which were imposed in 2026. In Pennsylvania, Governor Shapiro's re-election was less of a surprise, but there is some expectation for him to continue additional guardrails around data center development. We would flag VST as relatively well insulated from a pending moratorium, given their 2.6GW project with Meta involving nuclear plants in OH and PA is already underway.

Georgia: Governor-Elect Keisha Lance Bottoms does not list data center development as a core policy issue, but she has supported a pause on new data center developments, with a particular concern for energy and water use. Senator Jon Ossoff has been more punitive, calling for a complete moratorium and investigation into data center development in Georgia. We note that Georgia Power's 3.2GW project with OpenAI also seems to be relatively safe given that it has already received approval from the GSC and is expected to enter construction in late 2026.

Figure 2: Select Data Center Announcements in TX, PJM, and GA

Utility	Counterparty	Size	Generation or T&D Provider	Expected Power Date	Project Construction Status
TEXAS - Select Data Center Announcements					
Luminant ET Services (Vistra Corp affiliate)	New Era Energy & Digital	250 MW	Odessa Gas Plant	3Q27	Land secured and construction permits in hand
Vistra	Amazon	1,200 MW	Commanche Peak Nuclear Power Plant	4Q27	Pending regulatory approvals; Vistra execs have said they doubt the current ERCOT data center audit would affect this deal
AEP Texas	Galaxy Digital / CoreWeave	830 MW (doubling total approved power capacity to over 1.6 GW)	Powering Helios data center	2028	Phase I is complete and ERCOT approved additional 830 MW prior to Batch Zero
NextEra/Comstock	Lewis Energy Group / Related Digital	6,470 MW	Building new natural gas generation to power an adjacent data center campus	2029	Pending regulatory approvals; has signed funding agreements with the U.S. Department of Commerce and the Government of Japan
Clearway Energy	Google	1,170 MW total (including Missouri and West Virginia)	Unknown	2027-2028	Construction in 2026; limited disclosure on Texas portion of MW and on project completion status
PJM - Select Data Center Announcements					
Utility	**Counterparty**	**Size**	**Generation or T&D Provider**	**Expected Power Date**	**Project Construction Status**
Vistra	Meta	2,600 MW	Nuclear Perry & Davis-Besse plants in OH and the purchase of energy from uprates at those two plants and the Beaver Valley Plant in PA	2026	Nuclear uprates; not constructing new data center
Constellation	Google	890 MW	Nuclear Uprate PPA	First uprate expected online in 2028	Nuclear uprates; not constructing new data center
NextEra/Comstock	Multiple	4,300 MW	Adding gas-fired capacity in Mon Valley region, Pennsylvania	End of 2028	Pending regulatory approvals; has signed funding agreements with the U.S. Department of Commerce and the Government of Japan
GEORGIA - Select Data Center Announcements					
Utility	**Counterparty**	**Size**	**Generation or T&D Provider**	**Expected Power Date**	**Project Construction Status**
Georgia Power	OpenAI	3,200 MW	Powering new facility in Effingham County	2028	Received approval by Georgia Public Service Commission (PSC); late 2026 construction start

Source: Company news releases, ERCOT, Data Center Dynamics, PR Newswire.

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Data Centers

What is the impact on our HPC universe? We expect the primary investor focus to be on any changes to TX's regulation of data centers, as ~27% percent of the MW of data center capacity funded in the HY project finance market are being built in TX. Much of this risk will be concentrated within 2028/29 energizations which could face delays or even, in a draconian case, terminations (somewhat offset by termination rights outlined in Figure 3). Unfunded pipelines also now look more uncertain and difficult to finance. Specifically, within our tracked pipeline for public HY data center builders in Figure 4, ~78% is being built in TX (mainly by Cipher and Galaxy). Outside of projects backing existing data center bonds and the projected pipeline for the data center builders, the neoclouds also have exposure to data center build delays, which could delay capacity coming online, thus impacting contract timing. Based on what is publically available, in the US, CRWV rents or plans to rent data centers in ND, IL, GA, TX, NC, OK, VA, and NY and owns data centers in PA and NJ. CRWV also has projects involving international data centers in the UK, Denmark, Indonesia, India, and Canada.

Assets in the ground are going to be at a premium. Data centers and power infrastructure that have already been built or at least are fully permitted and under construction are worth more today than they were yesterday. However, the path to get new data centers permitted and constructed in critical states like Texas, Georgia, New Mexico, and Nevada is likely to be much more difficult, slower, and more expensive. As one astute trader noted this morning "we used to pay a premium for IG leases, now we are going to pay a premium for stuff that is already built". Are moratoriums going to become permanent bans? Time will tell, but we think not. To quote Elon Musk, "data centers in space are looking pretty good right now". While not in space, states that have been more receptive to data center development (Louisiana, North Dakota) are likely to receive more focus from developers and more capital at more attractive rates from the market. Additionally, we expect more focus on international data centers as the US becomes less hospitable to development.

Figure 3: HY Project Finance Universe Summary

Data Center Builder	Bond Ticker	Location	Tenant	Lease Commencement (Phase 1 / Final)	Lease Structure	Termination Rights (Delay Buffer)
Applied Digital	APLD	ND	CoreWeave (Meta)	2Q26	Gross	180-days + FM extensions
Applied Digital	PFORGE	ND	Oracle	1Q27 / 2Q27	Gross	150-days + FM extensions
Applied Digital	ELNFOR	ND	CoreWeave (Meta)	1Q27 / 3Q27	Gross	180-days + FM extensions
TeraWulf	WULF	NY	Fluidstack w/ Google guarantee	1Q26 / 4Q26	Gross	180-days + FM extensions
Fluidstack	FLASHC	TX (West)	Fluidstack w/ Google guarantee	3Q26	Gross	180-days + FM extensions
Cipher Mining	CIFR	TX (West)	Fluidstack w/ Google guarantee	4Q26-1Q27	Gross	180-days + FM extensions
Cipher Mining	BLKPRL	TX (West)	Amazon	4Q26 / 1Q27	Fixed / NNN	120-days + 30-day cure + FM extensions
Cipher Mining	STNGRY	TX (West)	Amazon	2Q27	Fixed / NNN	180-days + 30-day cure + FM extensions
Fleet Data Centers	TRACTC	NV	Nvidia	4Q27 / 2Q28	Yield on Cost (YoC) / NNN	3 years + another 12mo FM extensions
Fleet Data Centers	TRACTD	NV	Nvidia	4Q27 / 2Q28	Yield on Cost (YoC) / NNN	3 years + another 12mo FM extensions
Fluidstack/Frontier JV	MERIDI	IN	Fluidstack w/ Google guarantee	3Q27 / 4Q27	Yield on Cost (YoC) / NNN	No termination for construction delays; termination for casualty event
Fluidstack/Frontier JV	ZENARC	OK (Central)	Jane Street	4Q27 / 4Q28	Fixed / NNN	Tenant can terminate if power for DH1 not available by 10/31/2028
Edge Compute	EDGCOM	IL / GA	CoreWeave (CHI) / Alibaba (ATL)	2Q27 (CHI)/1Q27 (ATL); final 4Q27 (CHI)/2Q27 (ATL)	Fixed/NNN (CHI) / Gross (ATL)	270 days + FM (CHI); None (ATL)
CoreScientific	CORZ	TX / GA / NC / OK	CoreWeave	Completed (2024) / 1H27	Gross; Colocation Licensing Agreements	120-days + 30-day cure + FM extensions
SB Energy	SECMOS	TX (Austin)	SoftBank sub w/ SBGCL guaranty	4Q26 / 2Q27	Yield on Cost (YoC) / NNN	None; lease payments due regardless of delays
Prime Data Centers	ELKGVP	IL (Chicago)	CoreWeave	Operational (50%) / 1Q27	Fixed / NNN	None; lease payments due regardless of delays
Yondr	YNDRDC	VA	Oracle	1Q28 / 4Q28	Modified Gross	1 year + FM extensions (affected phase only)
Galaxy	GALAXY	TX (West)	CoreWeave	2Q26 / 1Q28	Yield on Cost (YoC) / Gross	180-days + FM extensions
CleanSpark	CLSPRK	GA	Meta	4Q27 / 1Q28	Fixed / NNN	1 year + FM extensions
BlueOwl/Cedar/Powe	DDRIVE	VA	CoreWeave (Meta)	4Q27 / 1Q28	Yield on Cost (YoC) / NNN	None for construction delays; FM terminations

*Sites with TX, GA, NM, NV exposure highlighted given recent Democratic governor elections
Source: Company reports.

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Figure 4: Public HY Data Center Builder Pipeline

Parent	Project	Location	Size
Applied Digital			
	Delta Forge 1	LA	300 MW IT
	Polaris Forge 3	ND	300 MW IT
	Delta Forge 2	AL	210 MW IT
	Dorothy 3	TX	50 MW IT
	Polaris Forge 2 Expansion	ND	100 MW IT
	Delta Forge 1or2 Expansion	ND	150 MW IT
TeraWulf			
	Justified	KY	401 MW IT
	Muskie	KY	800 MW IT
	Lake Hawkeye	NY	320 MW IT
	Lake Mariner Expansion	NY	162 MW IT
	Chesapeake	MD	800 MW IT
Cipher Digital			
	Odessa	TX	207 MW
	Reveille	TX	70 MW
	Ulysses	OH	200 MW
	McLennan	TX	500 MW
	Mikeska	TX	500MW
	Colchis	TX	1 GW
	Horizon	TX	70 MW
	Milsing	TX	500 MW
	Barber Lake Expansion	TX	500 MW
	Apollo	TX	900 MW
	Stingray Expansion	TX	200 MW
Core Scientific			
	Pecos	TX	185 MW
	Dalton Expansion	GA	120 MW
	Hunt	TX	110 MW
	Muskogee Expansion	OK	82 MW
	Auburn	AL	32 MW
	Hunt Expansion	TX	192 MW
	Muskogee Expansion	OK	192 MW
Galaxy Digital			
	Helios II	TX	830 MW
	Merlin	TX	74 MW
	Caspian	TX	700 MW
	Helios III	TX	1 GW
	Selene	TX	900 MW
	Helios IV	TX	1 GW
	Merglin II	TX	426 MW

*Sites with TX, GA, NM, NV exposure highlighted given recent Democratic governor elections
Source: Company reports.

Silver linings? Slowing overall data center development and deployment is not necessarily all bad. We don't anticipate any material changes to 2027 capital plans (if developers are spending money on projects in 2027 they are already under construction), but all else equal

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we would expect some impact in 2028 and beyond. Shallowing the growth curve should allow more time for monetization to catch up to spending, and likely keep compute in short supply longer than the counterfactual case. From a funding market standpoint, most 2027 projects have been funded. So the real question is when does the market begin to fund 2028 and beyond projects. Realistically, we expect bond supply to slow in the near-term as the market wrestles with the implications of the election, with the first set of new deals to launch likely focused on data centers and GPUs deployed in “safe” jurisdictions. The likely issuance slowdown should bode well for relieving at least a portion of the technical pressure on the sector.

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